

		proof of service of the moving papers be filed with the court no later than 5 court days before the date set for the hearing. No later than 5 court days before the continued hearing date, Plaintiff is ordered to file a proof of service of the motion.
9	24-01397104 <i>Doyle vs. Waldorf Astoria Monarch Beach & Resort Club</i>	Motion for Summary Judgment and/or Adjudication CONTINUED
10	24-01440278 <i>Hong vs. Mercedes-Benz USA, LLC</i>	Motion to Comply
11	26-01542892 <i>Hovarter vs. Monarch Heavy Haul Corporation</i>	Petition for Writ CONTINUED
12	25-01523245 <i>ICK International, Inc. vs. Jang</i>	Motion to Be Relieved as Counsel of Record The motion of attorney S. Young Lim and Jessie Y. Kim to withdraw as attorney of record for Defendant Byungchul Jang is GRANTED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.) Attorneys will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Additionally, prior to being relieved, counsel must provide Plaintiff's counsel with the last known address, telephone number, and email address of Jang. Moving attorneys are to give notice.
13	25-01461247 <i>Mike Bubalo Construction CO., Inc vs. Yorba Linda Water District</i>	1) Demurrer to Amended Complaint 2) Motion to Strike Portions Of Complaint Defendants Yorba Linda Water District, Reza Afshar, and Rosanne Weston's Demurrer to the Second Amended Complaint (SAC) is SUSTAINED without leave to amend. The 2nd cause of action requests a writ of mandate to withdraw or modify a performance evaluation. "The exhaustion of administrative remedies doctrine applies when there is an administrative remedy to questionable government action. It assures certain prerequisites are met before legal action is taken. Where an administrative remedy is provided by statute, relief must first be sought from the administrative body. This is a fundamental rule of procedure followed under the doctrine of stare decisis, and binding upon all courts. A court's intervention before an administrative agency has resolved the claim constitutes jurisdictional interference. Courts have no discretion to relax the exhaustion doctrine." (<i>Casa Blanca Beach Estates Owners' Assn. v. County of Santa Barbara</i> (2024) 102 Cal.App.5th 1303, 1308-1309 (<i>Case Blanca</i>) (cleaned up).) "An administrative decision is final, i.e., ripe, when the agency has exhausted its jurisdiction

and possesses no further power to reconsider or rehear the claim.” (*Id.* at 1309.)

As explained by this Court previously, allegations of requesting the same relief from the District itself does not meet the requisite showing that Plaintiffs have exhausted their administrative remedies. Plaintiffs must show they attempted to appeal the District decision to through the appropriate channels. Plaintiffs instead claim they repeatedly asked the District to change their mind about their own decision. (SAC, ¶¶ 66-77.) This is not an appeal. Further, this Court also previously explained failing to inform of the appellate rights was not sufficient to show the administrative procedure was effectively unavailable. (See *Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1028.) Finally, Plaintiffs allegations do not fall within the exception to the exhaustion requirement due to improper screening. “For administrative remedies to be effectively unavailable due to improper screening, ‘the inmate must establish (1) that he actually filed a grievance or grievances that, if pursued through all levels of administrative appeals, would have sufficed to exhaust the claim that he seeks to pursue in ... court, and (2) that prison officials screened his grievance or grievances for reasons inconsistent with or unsupported by applicable regulations.’ ” (*Ibid.*) Plaintiffs have not shown any attempts to appeal for the District to have interfered with.

Accordingly, Defendants’ demurrer to the 2nd cause of action is sustained.

“A public employee acting in the scope of his employment is not liable for an injury caused by his misrepresentation, whether or not such misrepresentation be negligent or intentional, unless he is guilty of actual fraud, corruption or actual malice.” (§ 822.2.) “The immunity afforded by Government Code section 822.2 applies unless, in addition to the essentials of common law deceit, a public employee is motivated by corruption or actual malice, i.e., a conscious intent to deceive, vex, annoy or harm the injured party.” (*Curcini v. County of Alameda* (2008) 164 Cal.App.4th 629, 649.) “In addition to facts establishing the ordinary elements of common law deceit, the pleader also must allege facts showing that the fraud was motivated by corruption or actual malice.” (*Ibid.*)

Plaintiffs do not allege sufficient facts to support their claim because they do not establish Afshar and Weston were motivated by actual malice or corruption. Plaintiffs plead a generic claim that Defendants knew of material facts but failed to disclose them. They have plead no facts regarding their motivations and ask the Court to infer the motivation based on the result. The Court declines to find an intent to injure merely because a party was injured.

Thus, Defendants’ demurrer to the 4th and 5th causes of action is sustained.

“The burden of showing a reasonable possibility that amendment can cure the defect in a complaint rests squarely on the plaintiff, who must

		identify specific facts showing that the complaint can be amended to state a viable cause of action. But a court should deny leave to amend an initial complaint only rarely, when it appears conclusively that it is impossible to allege such facts.” (<i>Amy's Kitchen, Inc. v. Fireman's Fund Ins. Co.</i> (2022) 83 Cal.App.5th 1062, 1073.) Here, Plaintiffs have simply requested leave to amend. <u>Motion to Strike</u> Defendants Yorba Linda Water District, Reza Afshar, and Rosanne Weston’s Demurrer to the Second Amended Complaint (SAC) is granted in part and denied as moot in part. Defendants’ requests to strike allegations within the 2nd, 4th, and 5th causes of action are denied as moot due to the Court sustaining the demurrer as to those causes of action. Defendants’ requests to strike requests for relief in the prayer are granted because those requests rely on the causes of action subject to the demurrer. Paragraphs 5, 6, and 15 of the SAC’s prayer for relief are ORDERED stricken.
14	24-01382884 <i>Ortega vs. FCA US, LLC</i>	Motion to Compel Production CONTINUED
15	25-01514073 <i>River Street Marketplace LLC vs. Salem Engineering Group, Inc.</i>	Demurrer to Amended Complaint The general demurrer of defendant Salem Engineering Group, Inc., to all seven causes of action in the first amended complaint of plaintiff River Street Marketplace, LLC, is OVERRULED. Defendant is ordered to file an answer to the FAC within 20 days. Defendant’s request for judicial notice is DENIED. <u>Discussion.</u> Defendant demurs to all seven causes of action in the plaintiff’s first amended complaint and asks for judicial notice of four documents from governmental sources that have no bearing on the issues presented in the moving papers. Plaintiff opposes the motion. <u>The first cause of action for breach of written contract.</u> The first cause of action is for breach of the written contract that is attached to the FAC as Exhibit A. Defendant contends that this cause of action fails for several reasons, starting with an argument that the contract cannot be enforced because it is not signed by the parties. In fact, the agreement that is attached to the FAC as Exhibit A is not signed. In support of its argument, defendant cites <u>Banner Enterprises, Inc. v. Superior Court</u> (1998) 62 Cal.App.4th 348, 358. In that case, the court stated the following at pp. 357-358: